

DELAWARE GENERAL (FINANCIAL) POWER OF ATTORNEY

NOTICE

As the person signing this general (financial) power of attorney you are the Principal.

The purpose of this power of attorney is to give the person you designate (your “Agent”) broad powers to handle your property, which may include powers to sell, dispose of, or encumber any real or personal property without advance notice to you or approval by you.

This power of attorney does not authorize your Agent to make health-care decisions for you.

This is a non-durable power of attorney and your Agent’s authority will not continue if you become incapacitated.

This power of attorney does not impose a duty on your Agent to exercise granted powers, but when powers are exercised, your Agent must use due care to act for your benefit and in accordance with this power of attorney.

Your Agent must keep your funds and other property separate from your Agent’s funds and other property.

A court can take away the powers of your Agent if it finds your Agent is not acting properly.

The powers and duties of an Agent under a power of attorney are explained more fully in [Delaware Code, Title 12, Chapter 49A](#).

If there is anything about this form that you do not understand, you should ask a lawyer of your own choosing to explain it to you.

I have read or had explained to me this notice and I understand its contents.

Principal _____ Date_____

INSTRUCTIONS

As the person completing this form, you are the Principal. This form gives another person the power to act on your behalf. The other person is your Agent.

This form allows you to designate: (1) one Agent at a time and up to two Agents in succession; (2) two or more Agents who may act independently of each other (Concurrent Agents); or (3) two or more Agents who must act together (Joint Agents).

If your Agent is unable or unwilling to act for you, your power of attorney will end unless you have named a successor Agent(s).

IF YOU HAVE QUESTIONS ABOUT THIS POWER OF ATTORNEY OR THE AUTHORITY YOU ARE GRANTING TO YOUR AGENT(S), YOU SHOULD SEEK LEGAL ADVICE BEFORE COMPLETING AND SIGNING THIS FORM.

DESIGNATION OF AGENT

I, _____, the **Principal**, name the following person(s) as my Agent(s):

Name of Agent: _____

Agent's Address: _____

Agent's Telephone Number: _____

DESIGNATION OF ADDITIONAL OR SUCCESSOR AGENTS (OPTIONAL)

Name of Agent: _____

Agent's Address: _____

Agent's Telephone Number: _____

Name of Agent: _____

Agent's Address: _____

Agent's Telephone Number: _____

If I have named more than one Agent above, I intend for those Agents to (*initial one of the following*):

_____ Act successively, one after the other

_____ Act concurrently, independent of each other

_____ Act jointly, not independent of each other

EFFECTIVE DATE

This power of attorney is effective immediately and shall terminate upon the principal's revocation, death, or incapacity.

GRANT OF GENERAL AUTHORITY

I grant my Agent and any successor Agent general authority to act for me with respect to the following powers described in more detail as defined in [Delaware Code, Title 12, Chapter 49A](#).

You should READ the terms of each category of power or authority before granting any of them to your Agent, e.g., Real Property, Section (§) 49A-204. (The Delaware Code may also be available at your local library.)

INITIAL each category you want to include in the Agent's general authority.

CROSS OUT each category you do not want to include in the Agent's general authority.

If you do not initial a category listed below, powers associated with that category will NOT be included as part of your Agent's general authority.

_____ Real Property § 49A-204

_____ Tangible Personal Property § 49A-205

_____ Stocks and Bonds § 49A-206

_____ Commodities and Options § 49A-207

_____ Banks and Other Financial Institutions § 49A-208

- _____ Operation of Entity or Business § 49A-209
- _____ Insurance and Annuities § 49A-210
- _____ Estates, Trusts, and Other Beneficial Interests § 49A-211
- _____ Claims and Litigation § 49A-212
- _____ Personal and Family Maintenance § 49A-213
- _____ Benefits from Governmental Programs or Civil or Military Service § 49A-214
- _____ Retirement Plans § 49A-215
- _____ Taxes § 49A-216

GRANT OF SPECIFIC AUTHORITY (OPTIONAL, PROCEED WITH CAUTION)

Giving your Agent any of the following powers will give your Agent the authority to take actions that could significantly reduce your property or change how and to whom your property is distributed at your death.

You should READ the terms describing each power before granting any of them to your Agent.

INITIAL each power you want to include in the Agent's authority.

CROSS OUT each power you do not want to include in the Agent's authority.

If you do not initial a power listed below, it will NOT be included as part of your Agent's specific authority.

- _____ Create, amend, revoke, or terminate an inter vivos trust.
- _____ Make a gift in excess of the limitations in 12 Del. C. § 49A-217.
- _____ Create or change rights of survivorship.
- _____ Create or change a beneficiary designation.

_____ Delegate authority granted under the power of attorney when all successor Agents have resigned, died, become incapacitated, are no longer qualified to serve, or have declined to serve.

_____ Exercise fiduciary powers that the Principal has authority to delegate.

_____ Reject, renounce, disclaim, release, or consent to a reduction in or modification of a share in or payment from estate, trust, or other beneficial interest.

RELIANCE ON THIS POWER OF ATTORNEY

Any person, including my Agent, may rely upon this power of attorney or a copy of it unless that person knows it has terminated or is invalid.

SIGNATURE AND ACKNOWLEDGMENT

IF YOU HAVE QUESTIONS ABOUT THIS POWER OF ATTORNEY OR THE AUTHORITY YOU ARE GRANTING TO YOUR AGENT(S), YOU SHOULD SEEK LEGAL ADVICE BEFORE SIGNING THIS FORM.

IN WITNESS WHEREOF, I have hereunto set my Hand and Seal this _____ day
of _____, 20_____.

Principal's Signature _____ (SEAL)

Printed Name _____

I, the witness, swear that I am not related to the Principal by blood, marriage, or adoption; and that I am not entitled to any portion of the estate of the Principal under the Principal's current will or codicil, or under any current trust instrument of the Principal.

Witness's Signature _____

Printed Name _____

STATE OF DELAWARE:

: SS.

COUNTY OF _____:

This Power of Attorney was acknowledged before me by _____,
this _____ day of _____, 20_____.

Notary Public _____ My commission expires on: _____

IMPORTANT INFORMATION FOR AGENT

Agent's Duties

When you accept the authority granted under this power of attorney, a special legal relationship is created between you and the Principal. This relationship imposes upon you legal duties that continue until you resign or the power of attorney is terminated or revoked. You must:

(1) do what you know the Principal reasonably expects you to do with the Principal's property or, if you do not know the Principal's expectations, act in the Principal's best interest;

(2) act in good faith;

(3) do nothing beyond the authority granted in this power of attorney; and

(4) disclose your identity as an Agent whenever you act for the Principal by writing or printing the name of the Principal and signing your own name as "Agent" in the following manner:

(Principal's Name) _____ by (Your Signature) _____ as Agent

Except as otherwise provided in the power of attorney, you must also:

(1) not act for your own benefit;

(2) avoid conflicts that would impair your ability to act in the Principal's best interest;

(3) act with care, competence, and diligence;

(4) keep a record of all receipts, disbursements, and transactions made on behalf of the Principal;

(5) cooperate with any person who has authority to make health-care decisions for the Principal; and

(6) not act in a manner inconsistent with the Principal's testamentary plan.

Termination of Agent's Authority

You must stop acting on behalf of the Principal if you learn of any event that terminates this power of attorney or your authority under this power of attorney. Events that terminate this power of attorney or your authority to act under it include:

(1) death of the Principal;

(2) the Principal becomes incapacitated;

(3) the Principal's revocation of the power of attorney or your authority;

(4) the occurrence of a termination event stated in the power of attorney;

(5) the purpose of the power of attorney is fully accomplished; or

(6) an action is filed with a court for your separation, annulment, or divorce from the Principal, unless the Principal otherwise provided in the power of attorney that such action will not terminate your authority.

Liability of Agent

The meaning of the authority granted to you is defined in Title 12, Chapter 49A of the Delaware Code. If you violate any of the regulations within this chapter, or act outside the authority granted, you may be liable for any damages caused by your violation.

If there is anything about this document or your powers, authority, or duties as Agent that you do not understand, you should seek legal advice.

AGENT'S CERTIFICATION

I, _____ (Name of Agent), have read the attached power of attorney and I am the person identified as the Agent or identified as the Agent for the Principal. To the best of my knowledge this power has not been revoked. I hereby acknowledge that, when I act as Agent, I shall:

Act in accordance with the principal's reasonable expectations to the extent actually known to me and, otherwise, in the Principal's best interest;

Act in good faith;

Act only within the scope of authority granted in the personal power of attorney; and

To the extent reasonably practicable under the circumstances, keep in regular contact with the principal and communicate with the principal.

In addition, in the absence of a specific provision to the contrary in the personal power of attorney, when I act as Agent, I shall:

Keep the assets of the Principal separate from my assets;

Exercise reasonable caution and prudence; and

Keep a full and accurate record of all actions, receipts and disbursements on behalf of the Principal.

Agent Signature _____ **Date** _____